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File No: EXP202304221

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access and Portability against NOMO MANAGEMENT SOLUTION, S.L. (hereinafter, the respondent) without their request, as stated by the claimant, having received the legally established response.

The claimant states that they have been a client of the respondent and that, after deciding not to renew the services provided by said entity, on January 17 and February 14, 2023, they requested via email the cancellation of their service and the access and portability of their data and documentation, having received in response an email dated February 14, 2023, in which they express regret over the claimant's decision, inform them of the services provided, and urge them to cancel their subscription, but do not address their request for access and portability.

The claimant provides a copy of the emails sent to the respondent and the response received.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the said complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests were satisfied. Consequently, on May 18, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing procedure, so that within fifteen working days they could present the arguments they deemed appropriate.

The respondent entity, in summary, presents documentation regarding the change of ownership due to the absorption of the entity, which is now called TALENOM SLU. They also provide a large number of emails exchanged with the claimant regarding the requested rights and the contractual relationship they maintain.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within fifteen working days, they may formulate the arguments they consider appropriate. The claimant is not recorded as having submitted any arguments.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the claimant's requests were satisfied. Consequently, on May 18, 2023, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. This admission agreement determines the opening of this procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

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“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

III

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond

to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the origin of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others, that is, the right of access shall be granted in such a way that it does not affect the data of third parties.

V

Right to Data Portability

The right to data portability must be exercised under the terms provided in Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation (GDPR). Thus, Recital 68 states the following: "To further strengthen control over their own data, when the processing of personal data is carried out by automated means, it should also be allowed..."

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that the data subjects who have provided personal data concerning them to a data controller receive it in a structured, commonly used, machine-readable, and interoperable format, and transmit it to another data controller. Data controllers should be encouraged to create interoperable formats that allow for data portability. This right should apply when the data subject has provided the personal data with their consent or when the processing is necessary for the performance of a contract. It should not

apply when the processing has a legal basis other than consent or the contract. By its very nature, this right should not be exercised against controllers that process personal data in the exercise of their public functions. Therefore, it should not apply when the processing of personal data is necessary to comply with a legal obligation applicable to the controller or for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the controller. The data subject's right to transmit or receive personal data concerning them should not obligate the controller to adopt or maintain technically compatible processing systems. When a specific set of personal data concerns more than one data subject, the right to receive such data should be understood without prejudice to the rights and freedoms of other data subjects in accordance with this Regulation. Furthermore, this right should not prejudice the data subject's right to obtain the erasure of personal data and the limitations of that right set out in this Regulation, and in particular, it should not imply the erasure of personal data concerning the data subject that they have provided for the performance of a contract, to the extent and for the time that the personal data are necessary for the performance of that contract. The data subject should have the right to have the personal data transmitted directly from one data controller to another when technically feasible.

For its part, Article 20 of the GDPR regarding the "Right to data portability" stipulates that:

"1. The data subject shall have the right to receive the personal data concerning them, which they have provided to a data controller, in a structured, commonly used, and machine-readable format, and to transmit it to another data controller without hindrance from the controller to whom they provided it, when:

- a) the processing is based on consent pursuant to Article 6(1)(a) or Article 9(2)(a), or on a contract pursuant to Article 6(1)(b), and
- b) the processing is carried out by automated means.

2. In exercising their right to data portability under paragraph 1, the data subject shall have the right to have the personal data transmitted directly from one controller to another where technically feasible.

3. The exercise of the right referred to in paragraph 1 of this Article shall be without prejudice to Article 17. Such a right shall not apply to processing that is necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

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4. The right mentioned in paragraph 1 shall not adversely affect the rights and freedoms of others."

On the other hand, Article 17 of the LOPDGDD under the heading "Right to Data Portability" establishes the following:

"The right to data portability shall be exercised in accordance with the provisions of Article 20 of Regulation (EU) 2016/679."

VI

Conclusion

The complainant states that they exercised their rights of access and portability regarding their personal data without receiving the legally established response.

The respondent has responded to the information request made by this AEPD; however, the response to the right of access to the personal data of the complainant processed in the invoices and the right to portability of their data has not been substantiated.

It should be clarified that the respondent is not obliged to provide the complainant with a copy of the requested invoices, but they should have provided or, if applicable, reasonably denied, the data processed in them as a result of the service provided, as well as the data submitted to the controller for portability.

According to the ruling of the Court of Justice of the European Union of May 4, 2023, in case C-487/21, Article 15, paragraph 3, first sentence of the GDPR, must be interpreted to mean that: (...the right to obtain from the controller a copy of the personal data undergoing processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right

to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation...)

From the above, a violation of the right of access and the right to data portability, as set forth in Articles 15 and 20 of the GDPR, respectively, is inferred.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge NOMO MANAGEMENT SOLUTION, S.L., with NIF B02676591, to send the complainant a certification addressing the exercised rights of Access and Portability within ten working days following the notification of this resolution, or to reasonably deny them, indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to NOMO MANAGEMENT SOLUTION, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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